

25LBCV00849 25LBCV00849

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS28%2C09%2F10%2F2026

Source SHA-256: c944e12d1947df4a286a0c397590100479fd59d1a7e687ab4e3effbc301ed94e

Case Number: 25LBCV00849 Hearing Date: September 10, 2026 Dept: S28

Hearing Date: Thursday, September 10, 2026

Case Name: William Osborne v. American Honda Motor Co., Inc.

Case No.: 25LBCV00849

Motion: Motion for Judgment on the Pleadings

Moving Party: Defendant American Honda Motor Co, Inc.

Responding Party: Plaintiff William Osborne

Notice: OK

Trial: 10/26/26, Jury Trial

Ruling: Defendant's Motion for Judgment on the Pleadings is GRANTED as to the first, second, third, fourth, and fifth causes of action with thirty (30) days leave to amend.

Moving party to give notice.

BACKGROUND

On

March 17, 2025, Plaintiff William Osborne ("Plaintiff") commenced this action against American Honda Motor Co., Inc. ("Defendant") alleging violations of Statutory Obligations under the Song-Beverly Act.

On July

9, 2026, Defendant filed the instant Motion for Judgment on the Pleadings.

On August 27, 2026, Plaintiff filed his
opposition.

On September 1, 2026, Defendant filed a
reply.

DISCUSSION

Applicable

Law

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322, citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The Court “must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” (*Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc.* (2006) 138 Cal.App.4th 1215, 1219-1220.)

Analysis

A.

First, Second, and Third Causes of Action –
Time-Barred

Defendant

contends that Plaintiff's Song-Beverly claims are time-barred.

California

Commercial Code section 2725 states in relevant part:

(1) An action for breach of
any contract for sale must be commenced within
four years after the cause of action has accrued. . .

(2) A cause of
action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the
breach. A breach of warranty occurs
when tender of delivery is made, except that where a warranty explicitly extends to future performance
of the goods and discovery of the breach
must await the time of such performance the cause of action accrues when the breach is or should
have been discovered. . .

(4)
This section does not alter the law on tolling of the statute of limitations . .
.

(Cal.
U. Com. Code § 2725.)

"California courts have held
that the statute of limitations for an action for breach of warranty under the
Song-Beverly Act is governed by the same statute that governs the statute of
limitations for warranties arising under the Uniform Commercial Code: section
2725 of the Uniform Commercial Code." (Mexia v. Rinker Boat Co., Inc.
(2009) 174 Cal.App.4th 1297, 1305–1306 (Mexia).)

Defendant

AHM asserts that Plaintiff's Song-Beverly Act claims are barred by California
Commercial Code section 2725 because the statute of limitations began to run on
the date of delivery of the Subject Vehicle, meaning on or about October 20, 2017. (Compl., ¶ 6.) AHM argues that
Plaintiffs' Song-Beverly Act claims lapsed on October 20, 2021, while the instant action was not
filed until March 17, 2025, and Plaintiff's Song-Beverly Act claims are thus
time-barred.

Plaintiff

asserts that under Commercial Code section 2725, when a warranty extends future
performance of the goods, the cause of action begins to accrue upon

discovery of the breach, not when delivery of the goods was made. (Cal. U. Comm. Code, § 2725 subd. (1), (2); see also *Mexia*, supra, 174 Cal.App.4th at p. 1309.) Plaintiff further argues that AHM's breach of its Song-Beverly obligations occurred when AHM failed to repurchase the vehicle after a reasonable number of repair attempts, which was shortly before filing the Complaint.

Here,

the statute of limitations did not begin to run on the date of delivery, but on the date of discovery of the breach because the Complaint asserts that the Subject Vehicle came with an express warranty that extended the time for future performance. (Compl., ¶ 6, Ex. A.) The Complaint alleges "Plaintiff discovered Defendant's wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following HONDA's unsuccessful attempts to repair them." (Id., ¶ 24.) " 'A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.' " (Favila v. Katten Muchin Rosenman LLP (2010) 188 Cal.App.4th 189, 224 [internal citations omitted].) " 'It must appear clearly and affirmatively that, upon the face of the complaint and matters of which the court may properly take judicial notice, the right of action is necessarily barred.' [Citations.]" (Ibid.)

AHM fails to show that Plaintiff's Song-Beverly Act claims are untimely on the face of the Complaint.

However,

Plaintiff alleges insufficient facts to state that Plaintiff's Song-Beverly Act claims began to accrue when the breach was discovered shortly before filing the Complaint, rather than on the date the Subject Vehicle was delivered. Plaintiff must state more than conclusory allegations to allege delayed discovery at this stage. Therefore, the motion for judgment on the pleadings as to the First, Second, and Third Causes of Action is GRANTED with thirty (30) days leave to amend.

B.

Fourth Cause of Action – Time-Barred

As

for the implied warranty claim, AHM asserts Plaintiffs' breach of implied warranty claim is time-barred as Plaintiff fails to allege any facts demonstrating tolling during the one-year implied warranty period, which began

on the date of purchase, October 20, 2017, and expired on October 20, 2018. (Mot., p. 4.) Under the Song-Beverly Act, the duration of the implied warranty of merchantability is no more than one year:

The duration of the implied warranty of merchantability. . . shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above.       

  

(Civ. Code,  1791.1(c).)

“[T]he implied warranty exists for at least 60 days and at most for one year after delivery of the product; after that time, the warranty ceases to exist.” (Mexia, supra, 174 Cal.App.4th at p. 1309. Therefore, the implied warranty can only be breached during the duration of the warranty. (Id. at p. 294.)     

However, the fact that the implied warranty has a duration of 60 days to one-year, does not mean that the plaintiff must discover the breach within that duration. “There is nothing that suggests a requirement that the purchaser discover and report to the seller a latent defect within that time period.” (Mexia,   supra,   174 Cal.App.4th at p. 1310.) This is because “implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.” (Id. at p. 1304.) To prevail on a claim for breach of the implied warranty, a plaintiff needs only show that the defect existed during the duration of the warranty, even if the latent defect was discovered   at a later time. “In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (Mexia,   supra,   174 Cal.App.4th at p.

1310.) “Thus, by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery.” (Id. at p.

1309 [italics added].) Therefore, a claim for breach of the implied warranty under the Song-Beverly Act, is different “from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (Ibid.)

“The

statute of limitations for breaches of the implied warranty of merchantability is four years.” (Montoya v. Ford Motor Co. (2020) 46 Cal.App.5th 493, 495; see also (Mexia, supra, 174 Cal.App.4th at p. 1306, fn. 6 [“the statute of limitations for an action for breach of warranty under the Song–Beverly Act is four years pursuant to section 2725 of the Uniform Commercial Code.”].) Defendant AHM cites no case law holding that a claim for breach of implied warranty based on a latent defect, the breach must be discovered within the four year statute of limitations or that the delayed discovery rule does not apply to breach of implied warranty claims under the Song-Beverly Act. “By providing a duration period for the implied warranty of merchantability, Civil Code section 1795.5, subdivision (c), contemplates that a breach may occur either when the goods are first purchased, or afterwards, when a latent defect is discovered by the buyer.” (Jones v. Credit Auto Center, Inc. (2015) 237 Cal.App.4th Supp. 1, 9.) “In the case of a latent defect, the implied warranty is breached by the existence of the unseen defect, not by its subsequent discovery.” (Mexia, supra, 174 Cal.4th 1297 at p. 1305.)

Thus,

a plaintiff may bring suit within four years of discovering the latent defect if the claim is based on allegations that the latent defects existed within the one-year period but were not discovered until months or years later. (See Mexia, at p. 1305 [“Thus, although a defect may not be discovered for months or years after a sale, merchantability is evaluated as if the defect were known.”] [italics added]; Mills v. Forestex Co. (2003) 108 Cal.App.4th 625, 642 [Homeowners' breach of implied warranties of fitness and merchantability claim against builder for latent defect in siding was subject to four-year limitations period from date of discovery of defect in siding].)

Here,

Plaintiff's breach of implied warranty claim is based on a latent defect that

existed at the time of sale. (Compl., ¶ 43.) However, the Complaint fails to allege why the latent defect was not capable of discovery at an earlier time during Plaintiff's years of ownership.

Therefore,

the motion for judgment on the pleadings as to the Fourth Cause of Action for breach of implied warranty is GRANTED with thirty (30) days leave to amend.

B. Fifth

Cause of Action – Fraudulent Inducement – Concealment

As for Plaintiff's Fifth Cause of

Action for Fraudulent Inducement – Concealment, Defendant's notice of motion raises the Economic Loss Doctrine as a bar, but Defendant makes no argument on this point in its Memorandum. Thus, the Motion is DENIED on this ground.

Defendant also argues that the fifth cause of action is time-barred as Plaintiff discusses a sensing defect but fails to state any facts about the specific defects with the Subject Vehicle, Plaintiff's personal experiences with this purported sensing defect, and the repairs attempted to address this purported sensing defect. (Complaint ¶¶ 46-57.) Defendant further argues that not a single fact is alleged regarding Plaintiff's discovery of AHM's alleged fraud.

Plaintiff argues delayed discovery is properly alleged.

Here, the Court finds the allegations insufficient to support a theory of delayed discovery which would toll the statute of limitations on the fraud claim. Accordingly, Plaintiff's Fifth Cause of Action is subject to judgment on the pleadings as time barred. Therefore, the motion for judgment on the pleadings as to the Fifth Cause of Action for fraudulent inducement is GRANTED with thirty (30) days leave to amend.

C. First,

Second, Third, and Fourth Causes of Action – Failure to State Facts

Defendant also argues that (1) the Complaint fails to state any facts demonstrating when AHM's duty (and in turn, breach) was triggered under

Civil Code § 1793.2(d) as the Complaint fails to identify a single repair that was performed on the Subject Vehicle; (2) Plaintiff pleads insufficient facts for her section 1793.2(b) claim about the length of any single repair or that any repair was not performed within thirty days or “commenced within a reasonable time;” (3) Plaintiff has not identified any facility relevant to Plaintiff’s claims or alleged, in even cursory fashion, what literature or replacement parts supposedly were unavailable to any such repair facilities; and (4) Plaintiff’s implied warranty claim fails because she does not identify the issue she alleges rendered her Vehicle not merchantable.

In opposition, Plaintiff does not address these arguments.

Here, Plaintiff fails to sufficiently allege the first, second, third, and fourth causes of action. “[A] plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.” (Youngman v. Nevada Irrigation District (1969) 70 Cal.2d 240, 245 (Youngman); see also Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099 (Doheny Park Terrace).) The Complaint does not make an effort to identify repair dates or any other basic information required to sustain these claims.

Therefore, the motion for judgment on the pleadings is GRANTED as to the first, second, third, and fourth causes of action with thirty (30) days leave to amend on this basis as well.

Conference Before Amended
Pleading or Motion for Judgment on Amended Pleading

“If a court grants a motion for judgment on the pleadings and grants leave to amend, the court may order a conference of the parties before an amended pleading, or a motion for judgment on an amended pleading, may be filed. If the conference is held, the court shall not preclude a party from filing

a motion for judgment on the pleadings and the time to file a motion for judgment on the pleadings shall not begin until after the conference has concluded." (CCP § 439, subd. (c)(1).)

The Court orders the parties to confer before filing another motion for judgment on the pleadings as to the forthcoming first-amended complaint.

CONCLUSION

Defendant's Motion for Judgment on the Pleadings is GRANTED as to the first, second, third, fourth, and fifth causes of action with thirty (30) days leave to amend.

Moving party to give notice.